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Technical and Infrastructure Security

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1 Malicious Software

1.1 HIPAA Security Rule Language

"Implement procedures for guarding against, detecting, and reporting malicious software." 45 CFR § 164.308(a)(5)(ii)(B).

1.2 Purpose Statement

PeriGen will implement and periodically review its process and implemented safeguards for guarding against, detecting, and reporting malicious software that pose risks to ePHI or ePHI Systems.

1.3 Policy/Procedure

1. PeriGen will take all necessary and reasonable measures to protect its ePHI Systems, and all media upon which ePHI is contained, from malicious software, including:
   a. Ensuring that anti-virus software is installed on all media devices and hardware, either owned by or used by PeriGen, containing ePHI or which have access to ePHI Systems;
   b. Ensuring that anti-virus software is configured to automatically scan every file being opened including email attachements or downloads.
2. PeriGen's IT Administrator will conduct a weekly virus scan of its network servers and workstations.
3. PeriGen Workforce Members must not bypass or disable anti-virus software installed on workstations unless they are properly authorized to do so.
4. PeriGen will provide annual training and awareness to Workforce Members about guarding against, detecting, and reporting malicious software, including:
   a. How to discover malicious software;
   b. How to report malicious software;
   c. How to scan for malicious software that may be contained in email attachments; and/or
   d. How to use anti-virus software.
5. Workforce Members must immediately report suspected or confirmed malicious software to the Privacy & Security Officer or IT Officer.

1.4 Administrative details

Responsibility: Privacy & Security Officer; IT Officer;

Definitions: Workforce Member; ePHI; ePHI System;

Regulatory Reference:

- ♦ 45 C.F.R. §164.308(a)(5)(ii)(B), Protection from Malicious Software [Implementation Specification; Addressable]

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2 Log-in Monitoring

2.1 HIPAA Security Rule Language

"Implement procedures for monitoring log-in attempts and reporting discrepancies." 45 CFR § 164.308(a)(5)(ii)(C).

2.2 Purpose Statement

To regularly track the identification and authentication of those accessing its ePHI Systems, PeriGen will monitor log-in attempts to its ePHI Systems. Such monitoring will ensure that appropriate measures are implemented to verify access to all of PeriGen's ePHI Systems.

2.3 Policy/Procedure

1. The log-in process for each ePHI System will use at least one of the following:
   a. Limitations on the number of unsuccessful log-in attempts;
   b. Software to record failed log-in attempts to the ePHI System; and/or
   c. Time-out periods (e.g. 10 minutes increasing with every subsequent failure) after three-failed log-in attempts that may occur during a particular time.
2. The Privacy & Security Officer will determine the standard for the number of log-in attempts allowed for each ePHI System before such failure triggers a timeout period and is logged.
3. If a Workforce Member is accidentally locked out of an ePHI System, he or she should immediately report the situation to his or her supervisor or IT Manager. The IT Manager will unlock the Workforce Member's credentials and re-issue the Workforce Member a new temporary password. The Workforce Member will then re-set his or her own individual password.
4. PeriGen will monitor the log-ins of Workforce Members into ePHI Systems in accordance with the Audit Controls Policy.

2.4 Administrative details

Responsibility: Privacy & Security Officer,

Definitions: Workforce Member; ePHI; ePHI System; User Regulatory Category: Administrative Safeguards

Regulatory Reference:

- 45 C.F.R. §164.308(a)(5)(ii)(C), Log-In Monitoring [Implementation Specification; Addressable]

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3 Password Management

3.1 HIPAA Security Rule Language

"Implement procedures for creating, changing, and safeguarding passwords." 45 C.F.R. §164.308(a)(5)(ii)(D).

3.2 Purpose Statement

To prevent unauthorized access to and use of ePHI contained within the ePHI Systems that PeriGen owns or controls, PeriGen requires Workforce Members to take appropriate measures to select and secure passwords that allow such access to ePHI Systems. For ePHI Systems that are not owned or controlled by PeriGen, the Privacy & Security Officer will ensure that its Workforce Members will adhere to the password requirements of each applicable ePHI System.

3.3 Policy/Procedure

1. For ePHI Systems that PeriGen owns or controls:
    a. Passwords must be re-set at least every 120 days.
    b. To maintain accountability, passwords must be individualized and kept confidential by each Workforce Member.
    c. Workforce Members must create and change their own passwords.
    d. Passwords may cycle every 3rd reset.
    e. Passwords cannot be displayed in clear text when inputting them into ePHI Systems.
    f. Passwords must be at least 7 characters in length, including at least one numeric character and one symbol.
    g. Passwords must be committed to memory and not written down
    h. Users may not use Administrator accounts for daily work or tasks that are not Administrative in nature

3.4 Administrative details

Responsibility: Privacy & Security Officer;

Definitions: User; Workforce Member; ePHI; ePHI System

Regulatory Reference:

- 45 C.F.R. §164.308(a)(5)(ii)(D), Password Management [Implementation Specification; Addressable]

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4 Security Incident Procedures

4.1 HIPAA Security Rule Language

"Implement policies and procedures to address security incidents." 45 CFR §164.308(a)(6)(i).

"Identify and respond to suspected or known security incidents; mitigate, to the extent practicable, harmful effects of security incidents that are known to the covered entity…and document security incidents and their outcomes." 45 CFR §164.308(a)(6)(ii).

4.2 Purpose Statement

Despite taking all reasonable and appropriate steps to protect the confidentiality, integrity and availability of ePHI, PeriGen may experience Security Incidents. PeriGen will promptly identify, report, track, and respond to Security Incidents. Awareness of, response to, and creation of reports about Security Incidents are integral parts of PeriGen's efforts to comply with the HIPAA Security Regulations.

4.3 Policy/Procedure

4.3.1 Security Incidents

1. A "Security Incident" is defined as the attempted or successful unauthorized access, use, disclosure, modification, or destruction of information or interference with system operations in an ePHI System.
2. The following incidents are examples of potential Security Incidents. This list is not exclusive. The Privacy & Security Officer will determine when a Security Incident has occurred.
    a. Stolen or otherwise inappropriately obtained passwords that are used to access ePHI or PeriGen's ePHI Systems;
    b. Corrupted backup tapes that do not allow restoration of ePHI;
    c. Virus attacks that interfere with the operations of PeriGen's ePHI Systems;
    d. Physical break-ins to PeriGen's facilities that may lead to the theft of electronic media containing ePHI;
    e. PeriGen's failure to terminate the account of a former Workforce Member that is then used by an unauthorized individual to access ePHI Systems; and/or
    f. Allowing electronic media containing ePHI, such as a computer hard drive or laptop, to be accessed by a Workforce Member who is not authorized to access such ePHI prior to removing the ePHI stored on the media.

4.3.2 Reporting Security Incidents

1. Any Workforce Member, including PeriGen management must report any potential Security Incident that he or she discovers, or any other potential threat to the confidentiality, integrity, or availability of ePHI, to the Privacy & Security Officer immediately upon discovery of the potential Security Incident or threat.
2. The Workforce Member may provide notice of the occurrence of a potential Security Incident in any format, including in writing, electronically, or orally.

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3. The Privacy & Security Officer will document the report of a potential Security Incident or threat from the Workforce Member along with the date and time that he or she was notified of such event.
4. PeriGen will not take any retaliatory measures against a Workforce Member who reports a potential Security Incident or threat. If the Security Incident was created by the neglect, or deliberate action, of a Workforce Member, then PeriGen may impose sanctions as set forth in other Policies.
5. No Workforce Member will prohibit or otherwise attempt to hinder or prevent another Workforce Member from reporting a potential Security Incident or threat.

4.3.3 Response to Security Incidents

1. Upon becoming aware of a potential or suspected Security Incident, the Privacy & Security Officer will immediately notify PeriGen senior management and legal counsel.
2. If the potential Security Incident involves ePHI or ePHI Systems that PeriGen received access to as a Business Associate of a Covered Entity, legal counsel will review the applicable Business Associate Agreement to determine whether and how the potential Security Incident should be reported to the Covered Entity. Legal counsel will also determine whether any additional notifications are required pursuant to applicable breach notification laws.
3. In consultation with legal counsel and PeriGen senior management, the Privacy & Security Officer will promptly conduct an initial review of the facts surrounding the potential Security Incident to determine whether a Security Incident occurred and, if so, the scope, magnitude and severity of the Security Incident; mechanisms for mitigating the harmful effects of the Security Incident; and, ways to remediate the vulnerability that lead to the Security Incident. The Privacy & Security Officer will present his or her initial findings to PeriGen senior management within 24 hours of becoming aware of the potential Security Incident and will update those findings as more information becomes available.
4. If the Privacy & Security Officer determines that no Security Incident has occurred, the Privacy & Security Officer will document this in a report along with all of the information that supports such conclusion and no further investigations or procedures are required.
5. If the Privacy & Security Officer determines that a Security Incident has occurred, he or she will consult outside counsel to review the initial report to PeriGen senior management and develop a risk management plan that sufficiently responds to the Security Incident.
6. The Privacy & Security Officer and outside counsel must analyze the Security Incident and deliver a response and recommendations to PeriGen senior management within a reasonable time after being convened, but no longer than five (5) days after the date that the Privacy & Security Officer learns of the Security Incident. The response and recommendations must address the cause of the Security Incident, mechanisms for mitigating the harmful effects of the Security Incident, and ways to remediate the vulnerability that lead to the Security Incident

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7. The Privacy & Security Officer will retain all documentation regarding the Security Incident in accordance with the PeriGen's Retention Policy.

4.3.4 Other Measures Regarding Security Incidents

1. PeriGen will provide training and awareness materials to its Workforce Members, as appropriate, regarding the process for promptly identifying, reporting, tracking, and responding to Security Incidents in accordance with this Policy.
2. PeriGen will work with appropriate third-parties to provide on-going support in the event of a cybersecurity incident response.
3. As deemed necessary by the Privacy & Security Officer, PeriGen will impose sanctions, including termination, in accordance with the Workforce Member Discipline Policy against Workforce Members whose actions lead to or cause Security Incidents.

4.4 Administrative details

Responsibility: Privacy & Security Officer,

Definitions: Security Incident; Workforce Member; ePHI; ePHI System.

Regulatory Reference:

- 45 C.F.R. §164.308(a)(6)(i), Security Incident Procedures [Standard; Required]
- 45 C.F.R. §164.308(a)(6)(ii), Response and Reporting (of Security Incidents) [Implementation Specification; Required]

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5 Contingency Plan

5.1 HIPAA Security Rule Language

"Establish (and implement as needed) policies and procedures for responding to an emergency or other occurrence (for example, fire, vandalism, system failure, and natural disaster) that damages systems that contain electronic PHI." 45 CFR § 164.308(a)(7)(i).

5.2 Purpose Statement

PeriGen' s Contingency Plan establishes procedures to recover its production ePHI Systems following a disruption. PeriGen has established the following objectives for this Contingency Plan:

1. Maximize the effectiveness of PeriGen's contingency operations through an established plan that consists of the following phases:
   a. Notification and Activation Phase to detect and assess damage and to activate the plan;
   b. Recovery phase to restore temporary ePHI System operations and to recover damage done to the original ePHI Systems; and
   c. Reconstitution phase to restore each ePHI System's processing capabilities to normal operations.
2. Identify the activities, resources, and procedures needed to carry out each ePHI System's processing requirements during prolonged interruptions to normal operations.
3. Assign responsibilities to designated Workforce Members who will participate in the contingency planning strategies, and provide guidance for recovering each ePHI System during prolonged periods of interruption to normal operations.
4. Ensure coordination with external points of contact and vendors who will participate in the contingency planning strategies.

This Contingency Plan Policy applies to the functions, operations, and resources necessary to restore and resume the operations of PeriGen's production ePHI Systems after an emergency or disaster. It does not apply to test and development systems that may contain ePHI but are not used for patient care.

5.3 Policy/Procedure

5.3.1 Contingency Plan Triggers

This Contingency Plan will be activated when support for the ePHI System will be completely unavailable for more than 5 business hours. This could be due to, but not limited to, network, phone system, computer system, power outages.

5.3.2 Notification Procedures

1. PeriGen personnel or a third-party representative who discovers that PeriGen 's facilities, the third party's facilities, or ePHI Systems have been affected by an

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emergency or disaster, must immediately notify the Privacy & Security Officer, Chief Product Officer or GM, Israel Operations.

2. The Privacy & Security Officer will notify all other personnel within PeriGen who will take part of the contingency and recovery activities.

5.3.3 Damage Assessment Procedures

The Privacy & Security Officer, or another PeriGen official appointed by the Chief Product Officer, upon his or her initial review of the situation, will assess the following:

a. The cause of the disruption;
b. The potential for additional disruption or damage;
c. The affected physical area and the status of physical infrastructure;
d. The status of the ePHI Systems' server's functionality and inventory, including items that may need to be replaced; and
e. The estimated time to repair services to normal operations.

5.3.4 Activation of Contingency Plan

The Privacy & Security Officer and other PeriGen official, will determine what contingency operations and recovery activities are necessary to repair and sustain operations of any or all ePHI Systems based on the damage assessment.

5.3.5 Recovery Operations

PeriGen will restore support for its ePHI Systems and recover ePHI in accordance with the following Policies and Procedures:

a. Data Backup Plan and Disaster Recovery Plan Policy; and
b. Emergency Mode Operations Plan.

5.3.6 Other Contingency Plan Procedures

1. PeriGen will perform a criticality analysis of each production ePHI System to determine its importance to PeriGen's operations during or after a disaster.
2. PeriGen will provide periodic training materials regarding its disaster and emergency response procedures to Workforce Members and Users, as appropriate.
3. PeriGen will periodically test its Contingency Plan to ensure that critical business processes can continue in a satisfactory manner. If necessary, PeriGen may revise the Contingency Plan, and the occurrence of any of the following events may result in a revision of the Contingency Plan:
   a. Disaster recovery role and responsibility changes, including changes to contact information;
   b. Changes to PeriGen's physical or technical infrastructure or operating systems;
   c. Changes in threats to ePHI Systems; or
   d. Results of testing that indicate that the plan needs to be modified to ensure that it is sufficient, accurate, and up-to-date.

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5.4 Administrative details

Responsibility: Privacy & Security Officer,

Definitions: Contingency Event; ePHI; ePHI System; Workforce Member;

Regulatory Category: Administrative Safeguards

Regulatory Reference:

- ♦ 45 C.F.R. §164.308(a)(7)(i), Contingency Plan [Standard; Required]

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6 Data Backup Plan and Disaster Recovery Plan

6.1 HIPAA Security Rule Language

"Establish and implement procedures to create and maintain retrievable exact copies of electronic PHI.

Establish (and implement as needed) procedures to restore any loss of data.

Implement procedures for periodic testing and revision of contingency plans." 45 CFR § 164.308(a)(7)(ii)(A)-(B);(D).

Create a retrievable, exact copy of electronic PHI when needed, before movement of equipment." 45 CFR § 164.310(d)(2)(iv).

6.2 Purpose Statement

If and when ePHI is maintained by PeriGen, PeriGen stores the data on a secure server. PeriGen has plans in place to create, maintain, and recover exact copies of all ePHI that is contained in any production ePHI System. The ability to recover exact copies of all ePHI will enable PeriGen to restore or recover any loss of ePHI and to restore its ePHI System(s) after damage caused by an emergency or disaster, such as fire, vandalism, terrorism, system failure, or natural disaster.

6.3 Policy/Procedure

1. PeriGen's backup procedure for data located on the Israel site is documented separately in the work instruction GW-WI-001 - Backup WI.

2. Where ePHI is stored by a third party or in an external location, PeriGen will ensure as part of the relevant supplier agreement that suitable backup procedures are in place.

3. PeriGen's disaster recovery plan is documented separately in the work instruction GW-WI-002 - Disaster Recovery WI.

4. PeriGen will periodically test its Data Backup Plan to ensure that critical business processes can continue in a satisfactory manner during a disaster. If necessary, PeriGen may revise the Data Backup Plan, and the occurrence of any of the following events may result in a revision of the Data Backup Plan:
    a. Changes to PeriGen's physical or technical infrastructure or operating systems;
    b. Changes in threats to its ePHI Systems or other applications that are supported by or interact with its ePHI Systems; or
    c. Results of testing that indicate that the plan needs to be modified to ensure that it is sufficient, accurate, and up-to-date.

5. In the event of an emergency or disaster, such as a fire, vandalism, terrorism, system failure, or natural disaster, PeriGen will use data retrieved from its backup repository to

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restore its ePHI Systems' functionality in accordance with the Contingency Plan Policy and the Disaster Recovery Plan.

6.4 Administrative details

Responsibility: Privacy & Security Officer;

Definitions: ePHI; ePHI System

Regulatory Category: Administrative Safeguards

Regulatory Type:

Regulatory Reference:

- 45 C.F.R. §164.308(a)(7)(ii)(A), Data Backup Plan [Implementation Specification; Required]
- 45 C.F.R. §164.310(d)(2)(iv), Data backup and storage [Implementation Specification; Addressable]
- 45 C.F.R. §164.308(a)(7)(ii)(B), Disaster Recovery Plan [Implementation Specification; Required]
- 45 C.F.R. §164.308(a)(7)(ii)(D), Testing and Revision Procedures [Implementation Specification; Addressable]

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7 Emergency Mode Operation Plan

7.1 HIPAA Security Rule Language

"Establish (and implement as needed) procedures to enable continuation of critical business processes for protection of the security of electronic protected health information while operating in emergency mode.

Implement procedures for periodic testing and revision of contingency plans." 45 CFR § 164.308(a)(7)(ii)(C)-(D).

7.2 Purpose Statement

PeriGen will develop and implement an Emergency Mode Operation Plan to enable the continuation of its critical business processes and to protect the security of ePHI while PeriGen operates in emergency mode. PeriGen's Emergency Mode Operation Plan will permit authorized Workforce Members to access and use ePHI available in its ePHI Systems during and immediately following an emergency or disaster. Emergency mode operation procedures detailed in the Emergency Mode Operation Plan must be tested on an annual basis to ensure that critical business processes can continue in a satisfactory manner while PeriGen operates in emergency mode.

7.3 Policy/Procedure

1. PeriGen Emergency Mode Operation Plan will:
   a. Define and categorize reasonably foreseeable emergencies and/or disasters that could have an impact on the confidentiality, integrity, and availability of ePHI contained in and available through its ePHI Systems.
   b. Include a procedure that specifies how its ePHI Systems will react to emergencies and disasters.
   c. Include a procedure that outlines how its ePHI Systems will maintain security processes and controls during and immediately following an emergency or disaster.
   d. Authorize designated Workforce Members to enter PeriGen's offices and facilities and any offsite location where backup media are stored to maintain the security processes and controls of ePHI Systems.
   e. Identify the roles that particular PeriGen Workforce Members will serve while PeriGen is operating in emergency mode.
   f. Identify the roles of designated Workforce Members who will be permitted to administer or modify processes and controls that protect the security of ePHI while PeriGen is operating in emergency mode.
2. PeriGen will make its Emergency Mode Operations Plan easily available to its Workforce Members at all times.
3. PeriGen will annually test its Emergency Mode Operations Plan to ensure that critical business processes can continue in a satisfactory manner. If necessary, PeriGen may revise the Emergency Mode Operations Plan, and the occurrence of any of the following events may result in a revision of the Emergency Mode Operations Plan:

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a. Disaster recovery role and responsibility changes, including changes to contact information.
b. Changes to PeriGen's physical or technical infrastructure or operating systems.
c. Changes in threats to ePHI Systems.
d. Results of testing that indicate that the plan needs to be modified to ensure that it is sufficient, accurate, and up-to-date.

Responsibility: Privacy & Security Officer;

Definitions: ePHI; ePHI System; Workforce Member;

Regulatory Category: Administrative Safeguards

Regulatory Reference:

- 45 C.F.R. §164.308(a)(7)(ii)(C), Emergency Mode Operation Plan [Implementation Specification; Required]
- 45 C.F.R. §164.308(a)(7)(ii)(D), Testing and Revision Procedures [Implementation Specification; Addressable]

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8 Applications and Data Criticality Analysis

8.1 HIPAA Security Rule Language

"Assess the relative criticality of specific applications and data in support of other contingency plan components." 45 C.F.R. §164.308(a)(7)(ii)(E).

8.2 Purpose Statement

The purpose of the criticality analysis is for PeriGen to document the impact to its services, processes, and operating objectives if a disaster or other emergency causes any or all of PeriGen's ePHI Systems to become unavailable for a documented period of time. The criticality analysis will serve as the basis for the prioritization of each ePHI System and the importance of its functionality to PeriGen's business operations during a disaster.

8.3 Policy/Procedure

1. To prioritize PeriGen's ePHI and other business critical Systems for disaster recovery, the Information Technology Department will develop a matrix, which:
   a. Inventories all systems, including ePHI Systems; and
   b. Determines the necessity of each ePHI System to the operation of PeriGen's critical business functions.
2. The matrix will be used to determine which ePHI Systems are most important to the operation of PeriGen's critical business functions and thereby determine how disaster recovery efforts will be focused during a Contingency Event or other disaster.
3. The matrix may direct:
   a. Which ePHI System(s) will be restored first; and/or
   b. Which ePHI System(s) will receive the first line of assistance during a disaster.
4. PeriGen will conduct a yearly data criticality analysis as part of its risk assessment in accordance with the Security Risk Management Policy.
5. The Privacy and Security Officer will be responsible for documenting all activities relating to the data criticality analysis, and such documentation will be maintained and retained by the Privacy & Security Officer for six years from the date of creation.

8.4 Administrative details

Responsibility: Privacy & Security Officer

Definitions: ePHI; ePHI System; Contingency Event

Regulatory Category: Administrative Safeguards

Regulatory Reference:

- 45 C.F.R. §164.308(a)(7)(ii)(E), Applications and Data Criticality Analysis [Implementation Specification; Addressable]

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9 Facility Access and Security

9.1 HIPAA Security Rule Language

"Implement policies and procedures to limit physical access to its electronic information systems and the facility or facilities in which they are housed, while ensuring that properly authorized access is allowed." 45 CFR § 164.310(a)(1).

"Establish (and implement as needed) procedures that allow facility access in support of restoration of lost data under the disaster recovery plan and emergency mode operations plan in the event of an emergency.

Implement policies and procedures to safeguard the facility and the equipment therein from unauthorized physical access, tampering, and theft.

Implement procedures to control and validate a person's access to facilities based on their role or function, including visitor control, and control of access to software programs for testing and revision.

Implement policies and procedures to document repairs and modifications to the physical components of a facility which are related to security (for example, hardware, walls, doors and locks." Implement procedures for periodic testing and revision of contingency plans." 45 CFR § 164.310(a)(2)(i)-(iv).

9.2 Purpose Statement

PeriGen will limit physical access to its ePHI Systems and to the facility or facilities in which they are located or accessible. Such access will be granted only to those Workforce Members and individuals who have been authorized to access PeriGen's facilities and areas where ePHI Systems are contained or accessible. During a Contingency Event, PeriGen will allow physical access to its facilities that contain ePHI Systems only to those authorized pursuant to its Contingency Plan. PeriGen will implement facility security controls to protect its facilities from unauthorized physical access, tampering, and theft. PeriGen will maintain records documenting any repairs or modifications that impact the physical security of its facilities or equipment.

9.3 Policy/Procedure

1. Access into the PeriGen facility is limited to PeriGen Workforce Members.

2. Visitors and vendors may be granted physical access to the facility in accordance with procedures that will be maintained for each facility.

9.4 Facility Security Controls

1. Workforce Member's access badge to the PeriGen office will be deactivated when a Workforce Member departs.

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2. PeriGen will supervise all visitors and vendors while they are physically present in its facilities.

3. PeriGen may install the following security controls to protect its facilities from unauthorized access, tampering and theft based on its risk analysis:
   a. Warning Signs
   b. Security System
   c. Alarms

9.4.1 Facility Repairs and Modifications

1. The appropriate building maintenance personnel will notify the Office Manager when a repair or modification to one of PeriGen's facilities is required.

2. No repair or modification that may impact the physical security of PeriGen's facilities may be commenced until proper authorization is granted by the GM Israel Operations or other appropriate member of PeriGen's senior management.

3. Examples of repairs or modifications include, but are not limited to:
   a. Re-keying door locks
   b. Changing security codes for alarms and doors
   c. Repair or replacement of the access card reader or fob
   d. Activation or deactivation of access cards or fob

4. PeriGen will document repairs and modifications made to its facilities that are related to the physical security of the facility or equipment. The Office Manager will maintain documentation on each repair or modification, which includes the following information:
   a. Name of the Workforce Member who authorized the repair or modification;
   b. Date and time of the repair or modification;
   c. Description of the condition of the physical component prior to the repair;
   d. Reasons for the repair or modification, including any damage from a Security Incident;
   e. Person(s) performing the repair or modification; and
   f. The outcome of the repair or modification.

9.5 Administrative details

Responsibility: Office Manager,

Definitions: ePHI; ePHI System; Vendor; Workforce Member

Regulatory Reference:

- ♦ 45 C.F.R. §164.310(a)(1), Facility Access Controls [Standard; Required]

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- 45 C.F.R. §164.310(a)(2)(i), Contingency Operations [Implementation Specification; Addressable]
- 45 C.F.R. §164.310(a)(2)(ii), Facility Security Plan [Implementation Specification; Addressable]
- 45 C.F.R. §164.310(a)(2)(iii), Access Control and Validation Procedures [Implementation Specification; Addressable]
- 45 C.F.R. §164.310(a)(2)(iv), Maintenance Records [Implementation Specification; Addressable]

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10 Workstation Use and Security

10.1 HIPAA Security Rule Language

"Implement policies and procedures that specify the proper functions to be performed, the manner in which those functions are to be performed, and the physical attributes of the surroundings of a specific workstation or class of workstation that can access electronic PHI." 45 CFR § 164.310(b).

"Implement physical safeguards for all workstations that access electronic protected health information, to restrict access to authorized users." 45 CFR § 164.310(c).

10.2 Purpose Statement

Workstations (laptops and desktops) will be used in a manner that is consistent with PeriGen's business purposes. PeriGen requires the implementation of reasonable physical safeguards to protect all workstations and other electronic devices that access, store or transmit ePHI from theft or unauthorized use. PeriGen will periodically review (quarterly), and may modify as appropriate, the permitted and prohibited uses of Workstations and the security controls implemented to protect Workstations in accordance with the Security Risk Management Policy. PeriGen will periodically distribute training and education materials to Workforce Members regarding the use and security of Workstations.

10.3 Policy/Procedure

10.3.1 Workstation Use

1. PeriGen informs Workforce Members of permissible and prohibited uses of Workstations, including personal use.
2. The same permissible and prohibited uses of Workstations apply to all Workstations regardless of their location.

10.3.2 Workstation Security

1. PeriGen will require Workforce Members to have unique user identifiers and passwords to gain access to their Workstations.
2. Any Workforce member who may access and store ePHI locally as part of his or her job will use a workstation with disk encryption enabled in order to ensure security of the ePHI.
3. Workforce Members must activate workstation locking software upon leaving a Workstation for more than ten (10 minutes.
4. Workforce Members must log off from their Workstations when their work-day shift is complete.
5. PeriGen will ensure that anti-virus software, which is configured to receive anti-virus updates, is installed on all Workstations that Workforce Members and use in accordance with the Malicious Software Policy.
6. These same Workstation security procedures apply to all Workstations regardless of the Workstation's location.

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10.4 Administrative details

Responsibility: Privacy & Security Officer;
Definitions: ePHI; ePHI System; Workforce Member; Workstation
Regulatory Reference:
45 C.F.R. §164.310(b), Workstation Use [Standard; Required]
45 C.F.R. §164.310(c), Workstation Security [Standard; Required]

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11 Device and Media Controls

11.1 HIPAA Security Rule Language

Implement policies and procedures that govern the receipt and removal of hardware and electronic media that contain electronic PHI into and out of a facility, and the movement of these items within the facility. 45 CFR § 164.310(d)(1).

"Implement policies and procedures to address the final disposition of electronic protected health information and/or the hardware or electronic media on which it is stored.

Implement procedures for removal of electronic protected health information from electronic media before the media are made available for re-use.

Maintain a record of the movements of hardware and electronic media and any person responsible therefore." 45 CFR § 164.310(d)(2)(i)-(iii).

11.2 Purpose Statement

PeriGen will take reasonable and appropriate steps to control its hardware and electronic media that contain ePHI throughout the media's entire lifecycle, from initial receipt to final removal. Such control includes reasonably and appropriately protecting, accounting for, storing, backing up, and disposing of its hardware and electronic media in accordance with specific control procedures and tracking all incoming hardware and electronic media and transfers of hardware and electronic media as they are moved into and out of PeriGen's direct control and premises.

11.3 Policy/Procedure

11.3.1 Inventory and Movement of Hardware and Electronic Media

1. PeriGen will take an inventory of hardware and electronic media that contain ePHI every six months. Workforce Members will be advised that they should not save any ePHI to electronic media unless required to do to perform their job functions.
2. If a Workforce Member is required to save ePHI to electronic media to perform his or her job functions, it may only be saved to hard drives and approved USB drives. No other media may be used to store ePHI, except in the case of encrypted tapes used for backup. Only PeriGen-owned USB/flash drives are permitted for the e-PHI to be stored. All PeriGen-owned USB/flash drives used in the process will be logged and must be signed out by the Director of Quality and Regulatory or his/her designee. Any e-PHI on the USB/flash drive that was used to perform the task will be disposed upon returning the USB/flash drive.
3. Prior to moving hardware or other electronic media that contain ePHI outside of PeriGen's facilities and out of the direct control of PeriGen, the Privacy & Security Officer must be notified of and grant authorization for such movement.
4. PeriGen will maintain documented records regarding the movement of hardware or other electronic media containing ePHI outside of PeriGen's facilities and outside of PeriGen's direct control. Documentation regarding the movement of hardware or

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electronic media will be required only for desktop computers, laptops, and other media storage devices that can be tracked. The following information must be documented in each record regarding the movement of hardware or electronic media:

a. Date of movement
b. Method of movement
c. Description of the moved medium
d. Dates indicating the time period that the moved medium was used at PeriGen
e. Dated signatures of the Privacy & Security Officer and all Workforce Members supervising the movement.

11.3.2 Disposal of ePHI, Hardware and Electronic Media

1. Hardware and Electronic Media
   a. PeriGen will take all reasonable and appropriate steps to remove ePHI from hardware and electronic media prior to the final disposal of the hardware or electronic media.
   b. The Privacy & Security Officer will determine which sanitization method is appropriate for the removal of ePHI from hardware and/or electronic media.
   c. The following sanitization methods may be used to remove ePHI from hardware and/or electronic media:
      i. Clearing
         1. Overwrites storage space on the hardware or electronic media with non-sensitive data.
         2. The hardware and/or electronic media type and size may influence whether overwriting is a suitable sanitization method.
         3. PeriGen will consult the National Institute of Standards and Technology (NIST) *Guidelines for Media Sanitization,* Publication 800-88 regarding its recommendations for clearing different media types.
         4. PeriGen will use an appropriate tool or method to clear ePHI from any hard drives or USB drives that may contain ePHI.
      ii. Purging
         1. Degaussing is an acceptable method of purging.
         2. Degaussing exposes the magnetic media to a strong magnetic field in order to disrupt the recorded magnetic domains.
         3. Degaussing cannot be used to purge nonmagnetic media, such as optical media or compact discs (CDs).
         4. PeriGen will consult the National Institute of Standards and Technology (NIST) *Guidelines for Media Sanitization,* Publication 800-88 regarding its recommendations for clearing different media types.
   d. If hardware and/or electronic media cannot be cleared or purged, the only method of disposal is to physically destroy the hardware and/or electronic

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media. Acceptable methods of destroying hardware and/or electronic media include:

i. Disintegration
ii. Incineration
iii. Pulverization
iv. Melting
v. Shredding

e. PeriGen will document the disposal of all hardware and electronic media disposal and the steps taken to remove ePHI prior to the disposal of such hardware and electronic media.

f. The Privacy & Security Officer or his or her designee will inspect all hardware and electronic media to ensure that all ePHI has been removed from the hardware or electronic media prior to disposal.

11.3.3 Media Re-Use

1. For the internal re-use of hardware and/or electronic media, such as the redeployment of a computer to another PeriGen business unit or Workforce Member, PeriGen will reformat all files on the hardware and/or electronic media so that such files are not accessible. Clearing of files and documents from previous equipment will be logged before redeployment of the computer to another PeriGen business unit or Workforce Member within 30 days. The process for redeployment of a computer previously used by a Workforce Member who is no longer employed at PeriGen is as follows:
   a. IT Manager will access all applications the previous Workforce Member had and cut off all access;
   b. IT Manager will capture all files and documents the previous Workforce Member had and will save on a drive on the server;
   c. IT Manager will wipe the computer clean;
   d. Senior Management (SVP and above) will dictate the access to the drive on the server to access previous Workforce Member's files.
2. For external re-use of hardware and/or electronic media (e.g. Donation or return of leased hardware), PeriGen will completely and permanently remove ePHI from the hardware and/or electronic media in accordance with the Disposal procedures of this Policy.

11.4 Administrative details

Responsibility: Privacy & Security Officer; Director of Quality and Regulatory

Definitions: ePHI

Regulatory Reference:

- 45 C.F.R. §164.310(d)(1), Device and Media Controls [Standard; Required]
- 45 C.F.R. §164.310(d)(2)(i), Disposal [Implementation Specification; Required]
- 45 C.F.R. §164.310(d)(2)(ii), Media Re-Use [Implementation Specification; Required]

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- 45 C.F.R. §164.310(d)(2)(iii), Maintenance of Records regarding Movements of Hardware and Media [Implementation Specification; Addressable]

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12 Technical Access Controls

12.1 HIPAA Security Rule Language

Implement technical policies and procedures for electronic information systems that maintain electronic PHI to allow access only to those persons or software programs that have been granted access rights as specified in 45 C.F.R. §164.308(a)(4) ["Implement policies and procedures for authorizing access to electronic PHI that are consistent with the applicable requirements of subpart E of this part."]. 45 CFR §164.312(a)(1).

"Assign a unique name and/or number for identifying and tracking user identity.

Establish (and implement as needed) procedures for obtaining necessary electronic PHI during an emergency.

Implement electronic procedures that terminate an electronic session after a predetermined period of inactivity.

Implement a mechanism to encrypt and decrypt electronic PHI." 45 CFR §164.312(a)(2)(i)-(iv).

12.2 Purpose Statement

To protect the confidentiality, integrity, and availability of ePHI, PeriGen has taken reasonable and appropriate steps to ensure that its ePHI Systems have technical safeguards to control and restrict access to its ePHI Systems to persons who are authorized to have such access in accordance with the Information Access Management Policy.

12.3 Policy/Procedure

PeriGen will implement appropriate technical security controls and methods that permit only authorized persons to access its ePHI Systems. Such controls and methods include, but are not limited to, the following:

a. Issuance of unique user identifications (user IDs) for each Workforce Member to be used in conjunction passwords as part of PeriGen's authentication measures.
b. Activation of password protected screensaver on Workstations after a designated period of inactivity (15 minutes).
c. Automatic lock after a designated period of inactivity (15 minutes).
d. Requiring Workforce Members to logoff or lock Workstations upon leaving their work areas.
e. Encryption (128-bit or greater), when appropriate and technically feasible, of ePHI through its ePHI Systems.

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12.3.1 Unique User IDs

1. PeriGen will control access to its ePHI Systems by assigning each Workforce Member who is granted access to an ePHI System a unique user ID that:
   a. Identifies the individual Workforce Member; and/or
   b. Identifies the individual Workforce Member; and/or Permits activities performed in ePHI Systems to be traced to the individual Workforce Member.
2. The Workforce Member's ID itself should not indicate the individual's access privileges but should be tied to the Workforce Member's role.

12.3.2 Workstation Screensavers

1. All PeriGen Workstations will be equipped with screensavers that will automatically activate after 5 minutes of inactivity.
2. Workforce Members can only deactivate the Workstation screensaver by entering his or her confidential password when prompted.

12.3.3 Encryption and Decryption

1. PeriGen will – when feasible – implement secure protocols, which encrypt data while such data is being electronically transmitted. In addition, these secure protocols allow decrypted data to be presented to the Workforce Member upon its arrival to his or her Workstation.
2. Unauthorized access to ePHI transmitted through its ePHI Systems is prevented through the use of the administrative, technical and physical safeguards for such systems described in these Security Policies and Procedures.

12.4 Administrative details

Responsibility: Privacy & Security Officer;

Definitions: ePHI; ePHI System; Workforce Member; Workstation;

Regulatory Reference:

- 45 C.F.R. §164.312(a)(1), Access Control [Standard; Required]
- 45 C.F.R. §164.312(a)(2)(i), Unique User Identification [Implementation Specification; Required]
- 45 C.F.R. §164.312(a)(2)(ii), Emergency Access Procedure [Implementation Specification; Required]
- 45 C.F.R. §164.312(a)(a)(2)(iii), Automatic Logoff [Implementation Specification; Addressable]
- 45 C.F.R. §164.312(a)(a)(2)(iv), Encryption and Decryption [Implementation Specification; Addressable]

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13 Integrity

13.1 HIPAA Security Rule Language

"Implement policies and procedures to protect electronic PHI from improper alteration or destruction." 45 CFR § 164.312(c)(1).
"Implement electronic mechanisms to corroborate that electronic PHI has not been altered or destroyed in an unauthorized manner. 45 CFR § 164.312(c)(2).

13.2 Purpose Statement

To safeguard ePHI, it is important to ensure that ePHI has not been altered or destroyed in an unauthorized manner. Therefore, PeriGen will take reasonable and appropriate steps to protect the integrity of ePHI that PeriGen creates, receives, maintains, or transmits.

13.3 Policy/Procedure

This procedure applies to production ePHI used for patient care, either production ePHI databases held by PeriGen or when Workforce Members access ePHI at a client site.

1) Where possible, Workforce Members and Users will have only read-only access to ePHI.
2) However, if a Workforce Member's or User's job function requires the alteration of ePHI, he or she will be granted read/write access to ePHI.
3) Each addition that a Workforce Member or User makes to an existing record containing ePHI will be treated as a new entry and will be logged in accordance with "Information System Activity Review; Audit Controls" (HIPAA-WI-004 Administration and Management).
4) If a Workforce Member or User modifies an existing record containing ePHI, the ePHI System on which the record is contained will log the modification in accordance with "Information System Activity Review; Audit Controls" (HIPAA-WI-004 Administration and Management).
5) Workforce Members and Users will not destroy ePHI without first providing notice to and receiving authorization from the Privacy & Security Officer in accordance with "Device and Media Controls Policy" (section 11).
6) It is not reasonable or appropriate for PeriGen to authenticate **ePHI** for the following reasons:
   a. The amount of ePHI that PeriGen creates and retains is limited.
   b. The majority of PeriGen's access to ePHI is in read-only mode.
   c. PeriGen has sufficient policies in place that minimizes the need to authenticate ePHI.

13.4 Administrative details

Responsibility: Privacy & Security Officer

Definitions: ePHI; ePHI System; Workforce Member;

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Regulatory Reference:

- 45 C.F.R. §164.310(c)(1), Integrity [Standard; Required]
- 45 C.F.R. §164.310(c)(2), Mechanisms to Authenticate Electronic PHI [Implementation Specification; Addressable]

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14 Person or Entity Authentication

14.1 HIPAA Security Rule Language

"Implement procedures to verify that a person or entity seeking access to electronic PHI is the one claimed." 45 CFR § 164.312(d).

14.2 Purpose Statement

To protect the confidentiality, integrity, and availability of ePHI, PeriGen will maintain a documented process for verifying the identity of any person or entity prior to granting access to ePHI.

14.3 Policy/Procedure

1. PeriGen requires the use of individual user IDs and passwords before access to ePHI is granted.
   a. IDs are assigned in accordance with the Workstation Use and Security Policy.
   b. Workforce Members choose complex and confidential passwords in accordance with the Password Management Policy.
2. When feasible, PeriGen will mask, suppress, or otherwise obscure the passwords of persons and entities seeking access to ePHI so that unauthorized persons are not able to observe such passwords.
3. PeriGen will limit the authentication attempts of persons seeking access to ePHI to three consecutive attempts. Authentication attempts that exceed this limit may result in:
   a. Logging of the event for review;
   b. Disabling of the Workforce Member's password; or
   c. Notifying the Privacy & Security Officer or other appropriate PeriGen official.

14.4 Administrative details

Responsibility: Privacy & Security Officer

Definitions: ePHI; ePHI System; Workforce Member;

Regulatory Reference:

- ♦ 45 C.F.R. §164.312(d), Person or Entity Authentication [Standard; Required]

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15 Transmission Security

15.1 HIPAA Security Rule Language

Implement technical security measures to guard against unauthorized access to electronic PHI that is being transmitted over an electronic communications network. 45 CFR § 164.312(e)(1).

"Implement security measures to ensure that electronically transmitted electronic PHI is not improperly modified without detection until disposed of.

Implement a mechanism to encrypt electronic PHI whenever deemed appropriate." 45 CFR § 164.312(e)(2)(i)-(ii).

15.2 Purpose Statement

To ensure the confidentiality, integrity, and availability of ePHI, PeriGen will implement technical security measures to guard against unauthorized access to ePHI while it is transmitted over electronic communications networks.

15.3 Policy/Procedure

1. PeriGen has implemented security protocols to protect data while such data is being electronically transmitted.

2. Unauthorized access to ePHI transmitted over electronic communications networks is prevented through the use of the administrative, technical and physical safeguards for all ePHI systems described in these Privacy and Security Policies and Procedures.

15.4 Administrative details

Responsibility: Privacy & Security Officer;

Definitions: ePHI

Regulatory Reference:

- 45 C.F.R. §164.312(e)(1), Transmission Security [Standard; Required]
- 45 C.F.R. §164.312(e)(2)(i), Integrity Controls [Implementation Specification; Addressable]
- 45 C.F.R. §164.312(e)(2)(ii), Encryption During Transmission [Implementation Specification; Addressable]

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